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ETC59 – Exclusive Tenant Listing Contract
Adoption Date: October 7, 2025
Mandatory Use Date: January 1, 2026

THIS IS A BINDING CONTRACT. THIS FORM HAS IMPORTANT LEGAL CONSEQUENCES AND THE PARTIES SHOULD CONSULT LEGAL AND TAX OR OTHER COUNSEL BEFORE SIGNING.

Compensation charged by brokerage firms is not set by law. Such charges are established by each real estate brokerage firm.

DIFFERENT BROKERAGE RELATIONSHIPS ARE AVAILABLE WHICH INCLUDE LANDLORD AGENCY, TENANT AGENCY, SELLER AGENCY, BUYER AGENCY, OR TRANSACTION-BROKERAGE.

EXCLUSIVE TENANT LISTING CONTRACT

☐ **TENANT AGENCY** ☐ **TRANSACTION-BROKERAGE**

Date: _____

1. AGREEMENT. Tenant and Brokerage Firm enter into this exclusive, irrevocable contract (Tenant Listing Contract) and agree to its provisions. Broker, on behalf of Brokerage Firm, agrees to provide brokerage services to Tenant. Brokerage Firm will receive compensation as set forth in this Tenant Listing Contract.

2. BROKER AND BROKERAGE FIRM.

☐ **2.1. Multiple-Person Firm.** If this box is checked, "Broker" (as defined below) is the individual designated by Brokerage Firm to serve as the Broker of Tenant and to perform the services for Tenant required by this Tenant Listing Contract. If more than one individual is so designated, then references in this Tenant Listing Contract to Broker includes all persons so designated, including substitute or additional brokers. The brokerage relationship exists only with Broker and does not extend to the employing broker, Brokerage Firm, or to any other brokers employed or engaged by Brokerage Firm who are not so designated.

☐ **2.2. One-Person Firm.** If this box is checked, Broker (as defined below) is a brokerage firm with only one licensed person. References in this Tenant Listing Contract to Broker or Brokerage Firm mean both the licensed person and brokerage firm, who serve as the Broker of Tenant and perform the services for Tenant required by this Tenant Listing Contract.

3. DEFINED TERMS.

3.1. Tenant: _____

3.2. Brokerage Firm: _____

3.3. Broker: _____

3.4. Premises. Premises means real estate which substantially meets the following requirements or similar real estate acceptable to Tenant:

3.5. Lease; Purchase.

3.5.1. A "Lease" of the Premises means any agreement between a landlord and the Tenant to create a tenancy or leasehold interest in the Premises.

☐ **3.5.2.** If this box is checked, Tenant authorizes Broker to negotiate a "Purchase" of the Premises. A "Purchase" of the Premises means the acquisition of any interest in the Premises or the creation of the right to acquire any interest in the Premises, including a contract for Purchase or lease by the Tenant, directly or indirectly, or any other person or entity on whose behalf the Tenant acts. It also includes an agreement to acquire any ownership interest in an entity that owns the Premises. The rights and duties owed under this Tenant Listing Contract apply to a Purchase of the Premises and the term Lease is synonymous with the term Purchase when used in reference to the rights and duties owed under this Tenant Listing Contract.

3.6. Listing Period. The Listing Period of this Tenant Listing Contract begins on _____ and continues through the earlier of (1) completion of the Lease of the Premises or Purchase of the Premises or (2) _____ and any written extensions (Listing Period). Broker will continue to assist in the completion of any Lease or Purchase for which compensation is payable to Brokerage Firm under § 7 of this Tenant Listing Contract, even after expiration of the Listing Period.

3.7. Applicability of Terms. A check or similar mark in a box means that such provision is applicable. The abbreviation "N/A" or the word "Deleted" means not applicable. The abbreviation "MEC" (mutual execution of this contract) means the date upon which both parties have signed this Tenant Listing Contract. For purposes of this agreement, "landlord" includes sublandlord and "tenant" includes subtenant.

3.8. Day; Computation of Period of Days, Deadline.

3.8.1. Day. As used in this Tenant Listing Contract, the term "day" means the entire day ending at 11:59 p.m., United States Mountain Time (Standard or Daylight Savings as applicable).

3.8.2. Computation of Period of Days, Deadline. In computing a period of days, when the ending date is not specified (e.g., three days after MEC), the first day is excluded and the last day is included. If any deadline falls on a Saturday, Sunday, or federal or Colorado state holiday (Holiday), such deadline ☐ **Will** ☐ **Will Not** be extended to the next day that is not a Saturday, Sunday, or Holiday. Should neither box be checked, the deadline will not be extended.

4. BROKERAGE RELATIONSHIP.

4.1. If the Tenant Agency box at the top of page 1 is checked, Broker represents Tenant as Tenant's limited agent (Tenant's Agent). If the Transaction-Brokerage box at the top of page 1 is checked, Broker acts as a Transaction-Broker.

4.2. In-Company Transaction – Different Brokers. When the landlord and Tenant in a transaction are working with different brokers within the Brokerage Firm, those brokers continue to conduct themselves consistent with the brokerage relationships they have established. Tenant acknowledges that Brokerage Firm is allowed to offer and pay compensation to brokers within Brokerage Firm working with a landlord.

4.3. In-Company Transaction – One Broker. If the landlord and Tenant are both working with the same Broker, Broker will function as:

4.3.1. Tenant's Agent. If the Tenant Agency box at the top of page 1 is checked, the parties agree the following applies:

4.3.1.1. Tenant Agency Unless Brokerage Relationship with Both. Broker represents Tenant as Tenant's Agent and must treat the landlord as a customer. A customer is a party to a transaction with whom Broker has no brokerage relationship. Broker must disclose to such customer the Broker's relationship with Tenant. However, if Broker delivers to Tenant a written Change of Status that Broker has a brokerage relationship with the landlord then Broker is working with both Tenant and landlord as a Transaction Broker. If the box in § 4.3.1.2 (**Tenant Agency Only**) is checked, § 4.3.1.2 (**Tenant Agency Only**) applies instead.

☐ **4.3.1.2. Tenant Agency Only.** If this box is checked, Broker represents Tenant as Tenant's Agent and must treat the landlord as a customer.

4.3.2. Transaction-Broker. If the Transaction-Brokerage box at the top of page 1 is checked, or in the event neither box is checked, Broker must work with Tenant as a Transaction-Broker. A Transaction-Broker must perform the duties described in § 5 and facilitate lease transactions without being an advocate or agent for either party. If the landlord and Tenant are working with the same broker, Broker must continue to function as a Transaction-Broker.

5. BROKERAGE DUTIES.

Broker, acting on behalf of Brokerage Firm as either a Transaction-Broker or a Tenant's Agent, must perform the following **Uniform Duties** when working with Tenant:

5.1. Broker must exercise reasonable skill and care for Tenant, including but not limited to the following:

5.1.1. Performing the terms of any written or oral agreement with Tenant;

5.1.2. Presenting all offers to and from Tenant in a timely manner regardless of whether Tenant is already a party to a written agreement to Lease the Premises;

5.1.3. Disclosing to Tenant adverse material facts actually known by Broker;

5.1.4. Advising Tenant regarding the transaction and advising Tenant to obtain expert advice as to material matters about which Broker knows but the specifics of which are beyond the expertise of Broker;

5.1.5. Accounting in a timely manner for all money and property received; and

5.1.6. Keeping Tenant fully informed regarding the transaction.

5.2. Broker must not disclose the following information without the informed consent of Tenant:

5.2.1. That Tenant is willing to pay more than the offered lease rate for the Premises;

5.2.2. What Tenant's motivating factors are;

5.2.3. That Tenant will agree to Lease terms other than those offered; or

5.2.4. Any material information about Tenant unless disclosure is required by law or failure to disclose such information would constitute fraud or dishonest dealing.

5.3. Broker may show premises in which Tenant is interested to other prospective tenants without breaching any duty or obligation to Tenant. Broker is not prohibited from showing competing tenants the same premises and from assisting competing tenants in attempting to lease a particular premises.

5.4. Broker is not obligated to seek other premises while Tenant is already a party to a Lease.

5.5. Broker has no duty to conduct an independent inspection of the Premises for the benefit of Tenant and has no duty to independently verify the accuracy or completeness of statements made by a landlord or independent inspectors. Broker has no duty

to conduct an independent investigation of Tenant's financial condition or to verify the accuracy or completeness of any statement made by Tenant.

5.6. Broker must disclose to any prospective landlord all adverse material facts actually known by Broker, including but not limited to, adverse material facts concerning Tenant's financial ability to perform the terms of the transaction.

5.7. Tenant understands that Tenant is not liable for Broker's acts or omissions that have not been approved, directed, or ratified by Tenant.

6. ADDITIONAL DUTIES OF TENANT'S AGENT. If the Tenant Agency box at the top of page 1 is checked, Broker is Tenant's Agent, with the following additional duties:

6.1. Promoting the interests of Tenant with the utmost good faith, loyalty, and fidelity;

6.2. Seeking lease rates and terms that are acceptable to Tenant; and

6.3. Counseling Tenant as to any material benefits or risks of a transaction that are actually known by Broker.

7. COMPENSATION TO BROKERAGE FIRM. In consideration of the services to be performed by Broker, Brokerage Firm will be paid as set forth in this section, with no discount or allowance for any efforts made by Tenant or any other person. Unless otherwise agreed to in writing, Brokerage Firm is entitled to receive additional compensation, bonuses, and incentives paid by listing brokerage firm or landlord. Broker will inform Tenant of the fee to be paid to Brokerage Firm and, if there is a written agreement, Broker will supply a copy to Tenant, upon written request of Tenant.

7.1. Brokerage Firm's Fee – Lease.

Check Compensation Arrangement:

☐ **7.1.1. Success Fee.** Brokerage Firm will be paid as follows:

7.1.1.1. Amount. $_____ per square foot per _____, or _____, except as provided in § 7.1.1.2.

7.1.1.2. Adjusted Amount. ☐ **See § 23 (Additional Provisions) or** ☐ **Other** _____

7.1.1.3. When Earned; When Payable – Lease. The Success Fee is earned by Brokerage Firm upon the mutual execution of the Lease. One-half of this fee is due and payable upon mutual execution of the Lease and one-half upon possession of the Premises by Tenant or as follows: _____.

☐ **7.1.2. Hourly Fee.** Brokerage Firm will be paid $_____ per hour for time spent by Broker pursuant to this Tenant Listing Contract, up to a maximum total fee of $_____. This hourly fee is payable to Brokerage Firm upon receipt of an invoice from Brokerage Firm.

☐ **7.1.3. Retainer Fee.** Tenant will pay Brokerage Firm a nonrefundable retainer fee of $_____ due and payable upon signing of this Tenant Listing Contract. This amount ☐ **Will** ☐ **Will Not** be credited against other fees payable to Brokerage Firm under this section.

☐ **7.1.4. Other Compensation.** _____.

7.1.5. Fee for Extension, Renewal or **Expansion.** If the Lease, executed after the date of this Tenant Listing Contract, contains an option to extend or renew, or if Tenant expands into additional space within the building or complex where the Premises is located, Brokerage Firm ☐ **Will** ☐ **Will Not** be paid a fee upon exercise of such extension or renewal option or expansion. If Brokerage Firm is to be paid a fee for such extension, renewal, or expansion, the amount of such fee and its payment are as follows: _____.

If neither box is checked, Broker will not be paid a fee upon any such extension, renewal, or expansion.

7.2. Brokerage Firm's Fee – Purchase. If the box in § 3.5.2 is checked, Brokerage Firm will be paid a fee equal to the greater of $_____ or _____% of the purchase price for the Premises, less any amounts paid by the listing brokerage firm or seller.

7.2.1. When Earned; When Payable – Purchase. This Purchase fee is earned upon the Purchase of the Premises and is due and payable upon delivery of deed.

7.3. Who Will Pay Brokerage Firm's Success Fee.

☐ **7.3.1. Listing Brokerage Firm, Landlord or Sublandlord May Pay. Tenant IS Obligated to Pay.** Broker is authorized and instructed to request payment of Brokerage Firm's Success Fee from the listing brokerage firm, landlord or sublandlord. Tenant is obligated to pay any portion of Brokerage Firm's Success Fee which is not paid by the listing brokerage firm, landlord or sublandlord. This section applies to: ☐ **New Premises** ☐ **Tenant's Existing Premises** ☐ **Both**.

☐ **7.3.2. Tenant Will Pay.** Tenant is obligated to pay Brokerage Firm's Success Fee. Brokerage Firm is NOT entitled to receive additional compensation, bonuses or incentives from listing brokerage firm, landlord or any other source.

☐ **7.3.3. Listing Brokerage Firm, Landlord or Sublandlord May Pay. Tenant is NOT Obligated to Pay.** Broker is authorized to obtain payment of Brokerage Firm's Success Fee from the listing brokerage firm, landlord or sublandlord. Provided Tenant has fulfilled Tenant's obligations in this Tenant Listing Contract, Tenant is not obligated to pay Brokerage Firm's Success Fee. This section applies to ☐ **New Premises** ☐ **Tenant's Existing Premises** ☐ **Both**.

If no box is checked above, then § 7.3.3 (**Tenant is NOT Obligated to Pay**) will apply.

7.4. Holdover Period. Brokerage Firm's Success Fee applies to Premises leased (or purchased if § 3.5.2 is checked) during the Listing Period of this Tenant Listing Contract or any extensions and also applies to Premises leased or purchased within _____

calendar days after the Listing Period expires (Holdover Period) (1) if the Premises is one on which Broker negotiated and (2) if Broker submitted its address or other description in writing to Tenant during the Listing Period (Submitted Premises). Provided, however, Tenant ☐ **Will** ☐ **Will Not** owe the Brokerage Firm's Success Fee under §§ 7.1, 7.2, 7.3.1 and 7.3.2 as indicated if a commission is earned by another brokerage firm acting pursuant to an exclusive agreement with Tenant entered into during the Holdover Period, and a Lease or Sale of the Submitted Premises is consummated. If no box is checked in this § 7.4, then Tenant does not owe the Brokerage Firm's Success Fee to Brokerage Firm.

7.5 Management Fee. Nothing in this Tenant Listing Contract prohibits Brokerage Firm from receiving a management fee from Landlord pursuant to a separate agreement to provide management services to Landlord.

8. LIMITATION ON THIRD-PARTY COMPENSATION. Neither Broker nor Brokerage Firm, except as set forth in § 7 will accept compensation from any other person or entity in connection with the Premises without the written consent of Tenant. Additionally, neither Broker nor Brokerage Firm is permitted to assess and receive mark-ups or other compensation for services performed by any third party or affiliated business entity unless Tenant signs a separate written consent for such services.

9. TENANT'S OBLIGATIONS TO BROKER. Tenant agrees to conduct all negotiations for the Premises only through Broker and to refer to Broker all communications received in any form from brokers, prospective landlords, owners, or any other source during the Term of this Tenant Listing Contract. Tenant represents that Tenant ☐ **Is** ☐ **Is Not** currently a party to any agreement with any other broker to represent or assist Tenant in the location or Lease or Purchase of the Premises. Tenant further represents that Tenant ☐ **Has** ☐ **Has Not** received a list of any "Submitted Premises" pursuant to a previous listing agreement to lease or purchase the Premises with any other broker.

10. OWNER'S ASSOCIATION. Tenant acknowledges that the Premises may be located within a common interest community, and if so, Tenant would be subject to the covenants, rules and regulations of the association of the community, including, but not limited to, parking regulations.

11. TENANT DUE DILIGENCE. Tenant is advised to perform all appropriate due diligence, including, but not limited to, verifying the accuracy and completeness of any information regarding the Premises in the Multiple Listing Service, marketing materials, owner's association documents, statements made by the landlord or landlord's broker, or any other sources.

12. DEFAULT; RIGHT TO CANCEL. If any obligation is not performed timely as provided in this Contract, the non-defaulting party has the following remedies:

12.1. If Broker is in Default. In the event the Broker fails to substantially perform under this Tenant Listing Contract, Tenant has the right to cancel this Tenant Listing Contract, including all rights of Brokerage Firm to damages. Any rights of Tenant that accrued prior to cancellation will survive such cancellation. Tenant's notice of cancellation must be made in writing, identify the basis for cancellation, and be delivered to Broker in accordance with § 26.

12.2. If Tenant is in Default. In the event the Tenant fails to substantially perform under this Tenant Listing Contract, including Tenant's failure to reasonably cooperate with Broker, Brokerage Firm may cancel this Tenant Listing Contract upon written notice to Tenant. Any rights of Brokerage Firm that accrued prior to cancellation will survive such cancellation, to include Brokerage Firm's damages. Such damages may include, but are not limited to, the Broker's out-of-pocket costs or the amount of a commission Broker would have earned under § 7. Brokerage Firm's notice of cancellation must be made in writing, identify the basis for cancellation, and be delivered to Tenant in accordance with § 26.

13. COST OF SERVICES OR PRODUCTS OBTAINED FROM OUTSIDE SOURCES. Broker will not obtain or order products or services from outside sources unless Tenant has agreed in writing, to pay for them promptly when due (e.g., space planning, drawings, surveys, radon tests, soil tests, title reports, engineering studies, property inspections). Neither Broker nor Brokerage Firm is obligated to advance funds for Tenant. Tenant must reimburse Brokerage Firm for payments made by Brokerage Firm for such products or services authorized by Tenant.

14. BROKERAGE SERVICES; SHOWING PREMISES.

14.1. Brokerage Services. The following additional tasks will be performed by Broker:

14.2. Showing Premises. Tenant acknowledges that Broker has explained the possible methods used by listing brokers, landlords and sublandlords to show premises, and the limitations (if any) on Tenant and Broker being able to access premises due to such methods. Broker's limitations on accessing premises are as follows: _____.
Broker, through Brokerage Firm, has access to the following multiple listing services and property information services:

_____.

15. DISCLOSURE OF TENANT'S IDENTITY. Tenant ☐ **Does** ☐ **Does Not** grant permission to Broker to disclose Tenant's identity to third parties without prior written consent of Tenant. If neither box is checked, Tenant does not provide such permission.

16. DISCLOSURE OF SETTLEMENT SERVICE COSTS. Tenant acknowledges that costs, quality, and extent of service vary between different settlement service providers (e.g., attorneys, lenders, inspectors and title companies). Broker cannot require Tenant to use a certain settlement service provider and Tenant can shop and select similar services from other companies. Tenant is ultimately responsible for selecting, qualifying, and paying for the settlement service providers who provide such services to Tenant.

17. WIRE AND OTHER FRAUDS. Wire and other frauds are a significant risk in real estate transactions. Anytime Tenant is supplying confidential information, such as social security numbers and bank account numbers, or transferring or receiving funds, Tenant should provide the information in person or in another secure manner. Wire instructions should only be sent by a Closing Company to the Tenant via encrypted e-mails or encrypted web portals that require end user authentication (i.e., password protected). If encrypted e-mails or encrypted web portals are not available, wire instructions should be delivered by hand, telephone, mail, or overnight courier. Tenant should never reply to an e-mail or call a telephone number included in an e-mail regarding wire instructions or trust changes to wiring instructions received via email without verbal confirmation from a trusted source. To protect against fraud, money should never be wired based on email instructions alone and wire transfer details and payment instructions should always be verified in person or by telephone using a trusted and independently verified contact number.

18. REMOVAL OF MARKETING MATERIAL. Tenant acknowledges that marketing material used by the landlord and the landlord's broker (e.g., videos, photos, etc.) may be difficult, if not impossible, to remove from syndicators and the Internet and releases Broker from any liability for Broker's inability to remove the information.

19. NONDISCRIMINATION. Tenant understands and agrees that the Broker may not violate federal, state, or local fair housing laws.

20. RECOMMENDATION OF LEGAL AND TAX COUNSEL. By signing this document, Tenant acknowledges that Broker has advised that this document has important legal consequences and has recommended consultation with legal and tax or other counsel before signing this Tenant Listing Contract.

21. MEDIATION. If a dispute arises relating to this Tenant Listing Contract, whether prior to or after possession of the Premises, and the dispute is not resolved, the parties must first proceed in good faith to submit the matter to mediation before proceeding to arbitration or litigation. Mediation is a process in which the parties meet with an impartial person who helps to resolve the dispute informally and confidentially. Mediators cannot impose binding decisions. The parties to the dispute must agree, in writing, before any settlement is binding. A party requesting mediation must deliver written notice requesting mediation to the other party as provided in § 26. The parties will jointly appoint an acceptable mediator and will equally share the cost of such mediation. The obligation to mediate, unless otherwise agreed, will terminate in the event the entire dispute is not resolved within 30 calendar days of the date written notice requesting mediation was delivered.

22. ATTORNEY FEES. In the event of any arbitration or litigation relating to this Tenant Listing Contract, the arbitrator or court must award to the prevailing party all reasonable costs and expenses, including attorney and legal fees.

23. ADDITIONAL PROVISIONS. The following additional provisions have not been approved by the Colorado Real Estate Commission:

24. ATTACHMENTS. The following are incorporated into and made a part of this Tenant Listing Contract:

25. NO OTHER PARTY OR INTENDED BENEFICIARIES. Nothing in this Tenant Listing Contract is deemed to inure to the benefit of any person other than Tenant, Broker, and Brokerage Firm.

26. NOTICE, DELIVERY AND CHOICE OF LAW.

26.1. Physical Delivery and Notice. Any document or notice to Brokerage Firm or Tenant must be in writing, except as provided in § 26.2 and § 26.3 and is effective when physically received by such party, or any individual named in this Tenant Listing Contract to receive documents or notices for such party.

26.2. Electronic Notice. As an alternative to physical delivery, any notice may be delivered in electronic form to Brokerage Firm or Tenant, or any individual named in this Tenant Listing Contract to receive documents or notice for such party, at the electronic address of the recipient by facsimile, email or _____.

26.3. Electronic Delivery. Electronic Delivery of documents may be delivered by: (1) email at the email address of the recipient, (2) a link or access to a website or server provided the recipient receives the information necessary to access the documents, or (3) facsimile at the facsimile number (Fax No.) of the recipient.

26.4. Choice of Law. This Tenant Listing Contract and all disputes arising hereunder are governed by and construed in accordance with the laws of the state of Colorado that would be applicable to Colorado residents who sign a contract in Colorado for real property located in Colorado.

27. MODIFICATION OF THIS CONTRACT. No subsequent modification of any of the terms of this Tenant Listing Contract is valid, binding upon the parties, or enforceable unless in writing and signed by the parties.

28. COUNTERPARTS. This Tenant Listing Contract may be executed by each of the parties separately and when so executed by all the parties, such copies taken together are deemed to be a full and complete contract between the parties.

29. ENTIRE AGREEMENT. This agreement constitutes the entire contract between the parties and any prior agreements, whether oral or written, have been merged and integrated into this Tenant Listing Contract.

30. COPY OF CONTRACT. Tenant acknowledges receipt of a copy of this Tenant Listing Contract signed by Broker, including all attachments.

31. MEGAN'S LAW. If the presence of a registered sex offender is a matter of concern to Tenant, Tenant understands that Tenant must contact local law enforcement officials regarding obtaining such information.

Brokerage Firm authorizes Broker to execute this Tenant Listing Contract on behalf of Brokerage Firm.

Tenant:

_____
Tenant's Signature Date

_____
Street Address

_____
City, State, Zip

_____
Phone No.

_____
Fax No.

_____
Email Address

_____
Tenant's Signature Date

_____
Street Address

_____
City, State, Zip

_____
Phone No.

_____
Fax No.

_____
Email Address

Brokerage Firm:

_____
Broker's Signature Date

_____
Brokerage Firm Street Address

_____
Brokerage Firm City, State, Zip

_____
Broker Phone No.

_____
Broker Fax No.

_____
Broker Email Address